

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING A PORTION OF SECTION 9, ALL OF THE W½ SECTION 14, ALL OF SECTION 15, A PORTION OF SECTION 16, AND ALL OF SECTION 21; TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING. (LOCATED TO THE SOUTHEAST OF THE INTERSECTION OF E. COLLEGE DRIVE AND AVENUE C).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Sweetgrass Land Co., LLC, Lummis Livestock Co., LLC, and Arp and Hammond Hardware Co., owners at the time of submittal of a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned PUD – Planned Unit Development and A-2 – Agricultural – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

MARIAN J. ORR, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT

Sweetgrass Annexation Annexation Summation

CASE NUMBER: UDC-17-00542 **SUBDIVISION CODE:** SWET01

PREPARED BY: Eric D. Hammer

MEETING DATES:	September 25, 2017 – Public Hearing Announcement	Public Meeting
	October 9, 2017 – Public Hearing / City Council	1 st Reading
	October 17, 2017 – Public Service Committee	1 st Reading
	October 23, 2017 – City Council	2 nd Reading
	November 7, 2017 – Public Service Committee	2 nd Reading
	November 13, 2017 – City Council	3 rd Reading

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Master Application; Petition Signed by Property Owners; Annexation Map – Submitted 8/25/2017 as the original project submission.

STAFF RECOMMENDATION: Staff recommends conditional approval of the annexation application with five (5) recommended conditions:

1. Correct or remove the "Note to Assessor" section per comments made by the County Assessor and Planning and Development staff.
2. Correct the boundary measurements, per comments by the City Surveyor.
3. Correct the legal description to show a full metes and bounds description, per comments by the City Surveyor.
4. Provide the boundary data for the W1/2 of Section 14 and the NE1/4NE1/4 of Section 15.
5. Add "a portion of Section 9" to the title block to match the entitlement of the associated ordinance.

ANNEXATION REPORT & STAFF REPORT
Sweetgrass Annexation

CASE NUMBER: UDC-17-00542 **SUBDIVISION CODE:** SWET01

PREPARED BY: Eric D. Hammer

MEETING DATES:	September 25, 2017 – Public Hearing Announcement	Public Meeting
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OWNERS

Sweetgrass Land Co., LLC
106 E. Lincolnway
Cheyenne, WY 82001

Arp and Hammond
1825 Campstool Rd.
Cheyenne, WY 82007

Lummis Livestock Co., LLC
1825 Campstool Rd.
Cheyenne, WY 82007

Westgas International Inc.
C/O Black Hills Energy
P.O. Box 1979
Denver, CO 80201

AGENT: Steil Surveying and Development Services
Casey Palma
1102 W 19th St.
Cheyenne, WY 82001

PROJECT: Sweetgrass Annexation
DESCRIPTION: An annexation application for land contiguous to the city.
LOCATION:

1. Legal Description: A portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming.
2. Location: Located to the southeast of the intersection of E. College Drive and Avenue C.
3. Addresses: Unaddressed.

SIZE: 2,364.25 acres
CURRENT ZONING: County PUD, County A-2
PROPOSED ZONING: City PUD
EXISTING USE: Grazing Land
PROPOSED USE: Residential/Commercial/Recreation

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	L.C.C.C. and Grazing	PUD, A-2, AG	City/County
South	Grazing	A-2	County
East	Grazing	A-2	County
West	Residential/Commercial	CB, MU, LI, A-2, AR	County

EXECUTIVE SUMMARY:

This annexation application was submitted for 2,364.25 acres of land located to the southeast of the intersection of E. College Drive and Avenue C. This application was submitted along with a preliminary plat application so that the property could begin the process of being subdivided.

Much of the land is zoned County PUD, with a small section to the north of this proposed annexation being zoned County A-2 Agricultural. The applicants received conditional approval of a City PUD preliminary plan from the Governing Body in 2016.

The applicants have proposed that this annexed land be a mix of residential, commercial, and recreational uses. According to the impact assessment submitted with the preliminary plat application, the project is expected to be built-out in five-year phases. By full build-out in the year 2068, Sweetgrass is expected to have 5,000 dwelling units and 4,415,000 square feet of non-residential floor area constructed. Based on the size and location of the project, infrastructure and service impacts are expected. This annexation petition is a step in preparing this land for that development.

PlanChyenenne supports this annexation application. The vast majority of the subject land is located within the Urban Service Boundary and the subject land outside of the boundary is proposed to be used as open space, trails, and passive recreational areas, which is consistent with PlanChyenenne. This application meets the requirements of Wyoming State Statute's Title 15 and the associated petition was certified by the City Clerk as valid.

Due to meeting the review criteria found in Wyoming State 15-1-402, staff recommends conditional approval of this annexation with five (5) recommended conditions:

1. Correct or remove the "Note to Assessor" section per comments made by the County Assessor and Planning and Development staff.
2. Correct the boundary measurements, per comments by the City Surveyor.
3. Correct the legal description to show a full metes and bounds description, per comments by the City Surveyor.
4. Provide the boundary data for the W1/2 of Section 14 and the NE1/4NE1/4 of Section 15.
5. Add "a portion of Section 9" to the title block to match the entitlement of the associated ordinance.

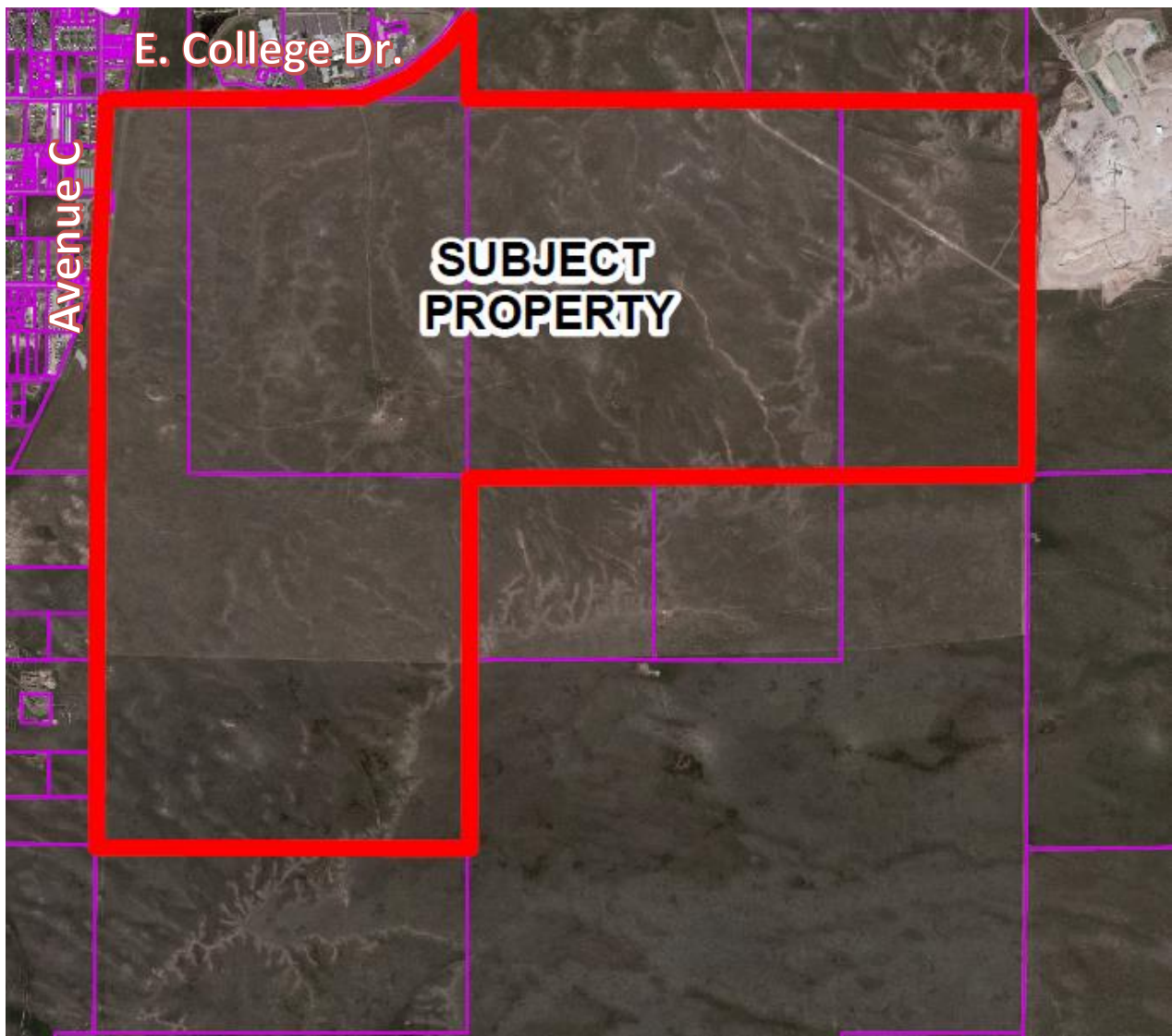
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located south of E. College Drive and east of Avenue C.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph # 1 – Image of the subject land from Avenue C, facing east.

Source: Planning and Development Department Image

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne. The vast majority of this land is within the Urban Service Boundary (USB) and, per Policy 1.2.B, is encouraged to develop with an urban character, however, some portions of the annexation are outside of the current USB. Policy 1.2.A explains that the USB is meant to guide urban growth and distinguish between urban and rural places.

Map #3, to the right, shows the current configuration of the USB line in relation to the land that is the subject of this annexation petition. The USB line is shown as a green line and the area shaded in pink denotes the subject land that is outside of the USB.

Based on the PUD preliminary plan and submitted preliminary plat, the applicants intend those areas outside the USB to be open space, trails, and portions of a planned golf course, which is consistent with the intent of the USB and Principle 1.2, which specifies that major growth should take place within the USB to promote efficient long-term use of land and urban services.

The subject land has several future land use designations, shown in Table #1 below with the percentage of the subject land designated with every future land use category. Map #4 shows the location of each of these designations with the subject land outlined in red. The vast majority of the land is either designed Urban Residential or Rural Residential. The submitted preliminary plat shows a different configuration of land uses than that of the current future land use map. It is anticipated that the applicants may submit for a future land use map amendment when their plans for the area are finalized.

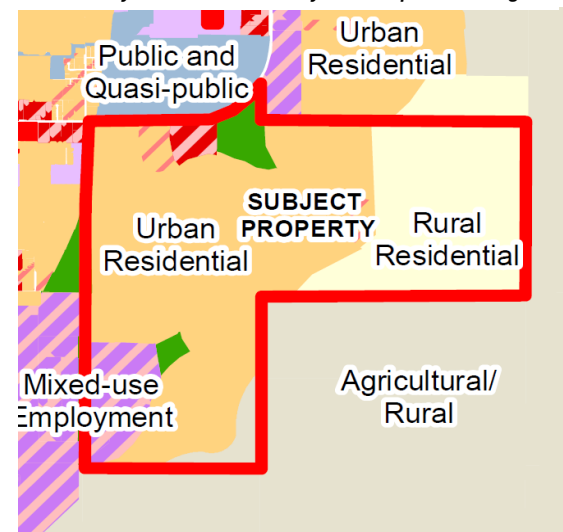
The applicants are seeking to zone this land to PUD Planned Unit Development and have already received conditional approval for the PUD preliminary plan from the Governing Body. The applicants have not submitted a PUD final plan to officially rezone the property to the approved PUD.



Map #3 – Current City Boundaries

Key:
Red Line: Proposed Annexation Boundary
Green Line: Current Urban Service Boundary (USB)
Blue Shaded Area: Proposed Annexation inside USB
Pink Shaded Area: Proposed Annexation outside USB

Source: Cheyenne/Laramie County GIS Cooperative Program



Map #4 – Future Land Use Map

Note: Open Space and Parks is denoted in Green, Mixed-use Commercial in red with pink crosshatches, and Mixed-use Residential in red with pink crosshatches.

Source: Cheyenne/Laramie County GIS Cooperative Program

Table #1: Future Land Use Designations

<i>Future Land Use</i>	<i>% of Land</i>
<i>Urban Residential</i>	55.2%
<i>Rural Residential</i>	26.5%
<i>Mixed-use Employment</i>	7.1%
<i>Open Space and Parks</i>	4.1%
<i>Agriculture/Rural</i>	2.9%
<i>Mixed-use Residential</i>	2.6%
<i>Mixed-use Commercial</i>	1.5%

Source: Cheyenne/Laramie County GIS Cooperative Program

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

This annexation would allow the property to access City water, sanitary sewer, and sanitation service. City police and fire services would be available immediately, which serves the public safety and welfare. As this annexation would allow the property to connect to water and sewer services (after extensions), it would enhance the environmental quality of the land. Therefore, the annexation of this property would increase the health, safety, and welfare of the residents of the Cheyenne area.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property would constitute a natural, geographic, economic, and social part of the City. The contiguity along the northern boundary of the property make the parcel a natural geographic part of the City. The people who will live and work on this land are a part of the social and economic fabric that is Cheyenne.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to property owners would also be available to this location.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcel proposed for annexation is approximately 18% contiguous to City limits.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Electric utility franchises are in place to serve the parcels.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

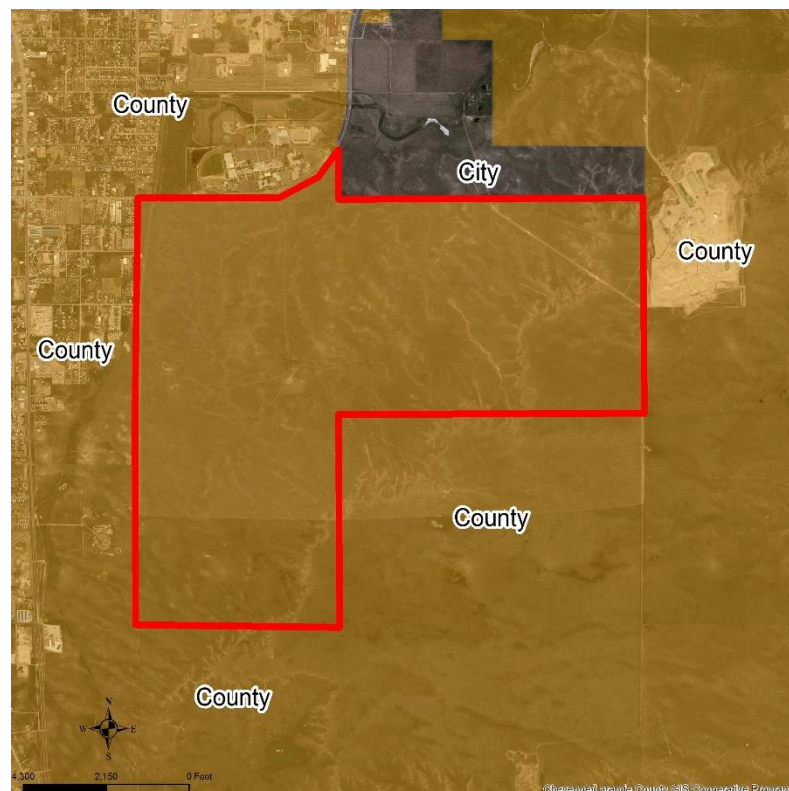
A certified mailing was made to the required property owners and agencies on September 7, 2017. The earliest certified mailing response was dated September 8, 2017.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is herein provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
 - (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation of this vacant land is approximately \$0.00. Additional on- and off-site improvements may be required with subsequent development actions.
 - (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.
 - (iv) Fees for water, sewer, and sanitation services are a variable amount for residential and commercial units, based upon volume and meter size. Service costs will not be charged until development occurs.
 - (v) The current property tax mill levy imposed is 67.17 and projected property tax mill levy imposed by the city is 72.17.
 - (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.
-

Map #5 – Current City Boundaries

Note: Subject land is denoted with a red outline.
Source: Cheyenne/Laramie County GIS Cooperative Program



REVIEW

Agencies with comments:

Black Hills Corp: Dustin McKen

BHE is not owner of parcel on west boundary of section 16 but is not opposed to reconfiguring parcel boundaries or annexation of property. (Planning Staff Note: Provided as FYI.)

Laramie County Assessor: Clarice Blanton

There is no objection to the annexation. There are three different owners. Are they all in agreement to the annexation? Only one is noted as Owner. (Planning Staff Note: The three owners noted are controlled by the same person. There is a fourth owner who has been notified about the annexation and does not oppose it.)

The first Note to Assessor is incomplete. The second Note does not apply to this development or annexation. (Planning Staff Note: Condition.)

Development: Eric Hammer

City planning staff is directed to use W.S. 15-1-402 as the review criteria for annexations. Staff finds that:

- i. This annexation is for the protection of the health safety and welfare of persons who are anticipated to reside within this area and for those residing in the City. Quality city water and sanitary sewer services will be provided, after extended at the expense of the owner, to this property.
- ii. This land is currently within Laramie County, adjacent to the City. The vast majority of the property is currently within the Urban Service Boundary. Future residents of land will be a part of the Cheyenne economy and social fabric.
- iii. This annexation is a logical and feasible addition to the City and the developers of this property have conferred with local utility providers to ensure that basic services are available to the land and future residents.
- iv. The area is contiguous and adjacent to the city to the north.
- v. Cheyenne does not operate its own electric utility, however, franchises are in place to serve this land.
- vi. City staff sent the required summary and details of the public hearing on September 7, 22 business days before the public hearing. State statute requires the notice to be sent out 20 business days prior to the public hearing. (Planning Staff Note: Provided as FYI.)

As for the map, the minimum drawing requirements for the map appear to be met. Note to Assessor seems off... (Planning Staff Note: Condition.)

Engineering Department: Mark Escobedo

1. Traffic mitigation was not part of the Traffic Impact Analysis. It is impossible to determine the effects of a project of this size if the impacts are not identified in the preliminary engineering and mitigation of those impacts is not a part of. Please include mitigation as part of the Traffic Impact Analysis Report. (Planning Staff Note: This is in relation to the platting action. The applicants have submitted a preliminary plat concurrently to this application.)

Engineering Department: Jack Studley

1. The boundary for the proposed annexation appears to include the East College Drive right of way, which I think should be occurring. However, the boundary data appears to only be the Southerly right of way dimensions. This is required to be clarified before I can double check closure and legal description. (Planning Staff Note: Condition.)
2. The legal description needs to be a full Metes and Bounds description, specifically identifying each course line followed. Eg.: a Section line; right of way line; etc. etc. A portion of Section 9 or 16 is adequate in the title block, but not the legal description. (Planning Staff Note: Condition.)
3. The NOTE TO ASSESSOR is not necessary on the Annexation map. (Planning Staff Note: Condition.)
4. The boundary data for the W1/2 of Sec. 14 is not provided. (Planning Staff Note: Condition.)
5. The boundary data for the NE1/4NE1/4 of Sec. 15 is not provided. (Planning Staff Note: Condition.)

Environmental Health Department: Roy Kroeger

Laramie County Small Wastewater System Regulations - 201 Area Facility Management Plan

This property is located within the boundary of the 201 Area Facility Management plan and therefore access to public sewer is consistent with the plan. The Health Department is in support of the annexation to make public sewer available to the development. (Planning Staff Note: Provided as FYI.)

Metro Planning Office (MPO): Nancy Olson

The TIS is required to identify impacts of the development at build-out to the roadway network in the southeastern region of our metropolitan area. This would include rebuilding and paving the collectors to and from the arterials adjacent to this large development. Most of the roads in south Cheyenne are narrow rural roads and will not handle increased volumes. It also will include intersection widening to add turn lanes and signalizations to many roads feeding the arterial networks. College Drive will need to be straightened to eliminate the sweeping curve and widened. These are serious impacts, substantial mitigations at an enormous cost. (Planning Staff Note: These concerns should be noted, but are in regard to the preliminary plat, rather than the annexation.)

Police Department: Brian Kozak

This development will have a serious impact to public safety. The City must plan to increase police officers to service the planned build out of the project. Additionally, the PD will need space for a substation (in a neighborhood fire station) to better serve the residents of this development. I believe the developer should be required to pay for this infrastructure. (Planning Staff Note: These concerns should be noted, but are in regard to the preliminary plat, rather than the annexation.)

Public Works: Nathan Beauheim

Based on the FY2016 Budget, the Public Works Department estimates that the budgets of the Traffic and Street & Alley divisions will need to be increased by approximately \$331,000 per year (in 2016 dollars) to provide service to this development at full build-out. This does not include possible costs relating to the City potentially accepting responsibility for snow plowing or other maintenance activities on exterior roadways such as College or Ave. C. (Planning Staff Note: These concerns should be noted, but are in regard to the preliminary plat, rather than the annexation.)

Suncor Pipeline: Dillon Ohrt

At the present time, Suncor holds no objection to the annexation and development of the Sweetgrass PUD. We ask that we be kept involved in the development plans of the three roads that appear to cross our lines along the western boundary of Sections 16 & 21. Additionally,

Suncor would welcome a discussion regarding the installation of a walking trail over our lines if it is of interest to the developer(s) in the future. Suncor wishes Lummis Livestock Co. the best of luck in their endeavor. (Planning Staff Note: Provided as FYI.)

Urban Planning: Logan Ward

One major concern is whether the new taxes generated by this development fully covers both ongoing maintenance of the capital investments required and staffing to provide the necessary services. (Planning Staff Note: Provided as FYI.)

Reviewing agencies without comments:

*Board of Public Utilities: Linda Gunter
Attorney's Office: Alessandra McCoy
Engineering Department: Jim Voeller
Laramie County Attorney: Mark Voss
Laramie Cty Planning & Devel.: Nancy Trimble
GIS/Engineering/Addressing: Gary Stogsdill
Fire Department: Jim Schamerhorn
Mapping: Joe Fisher
Parks and Recreation Admin: Teresa Moore*

Reviewing agencies without response:

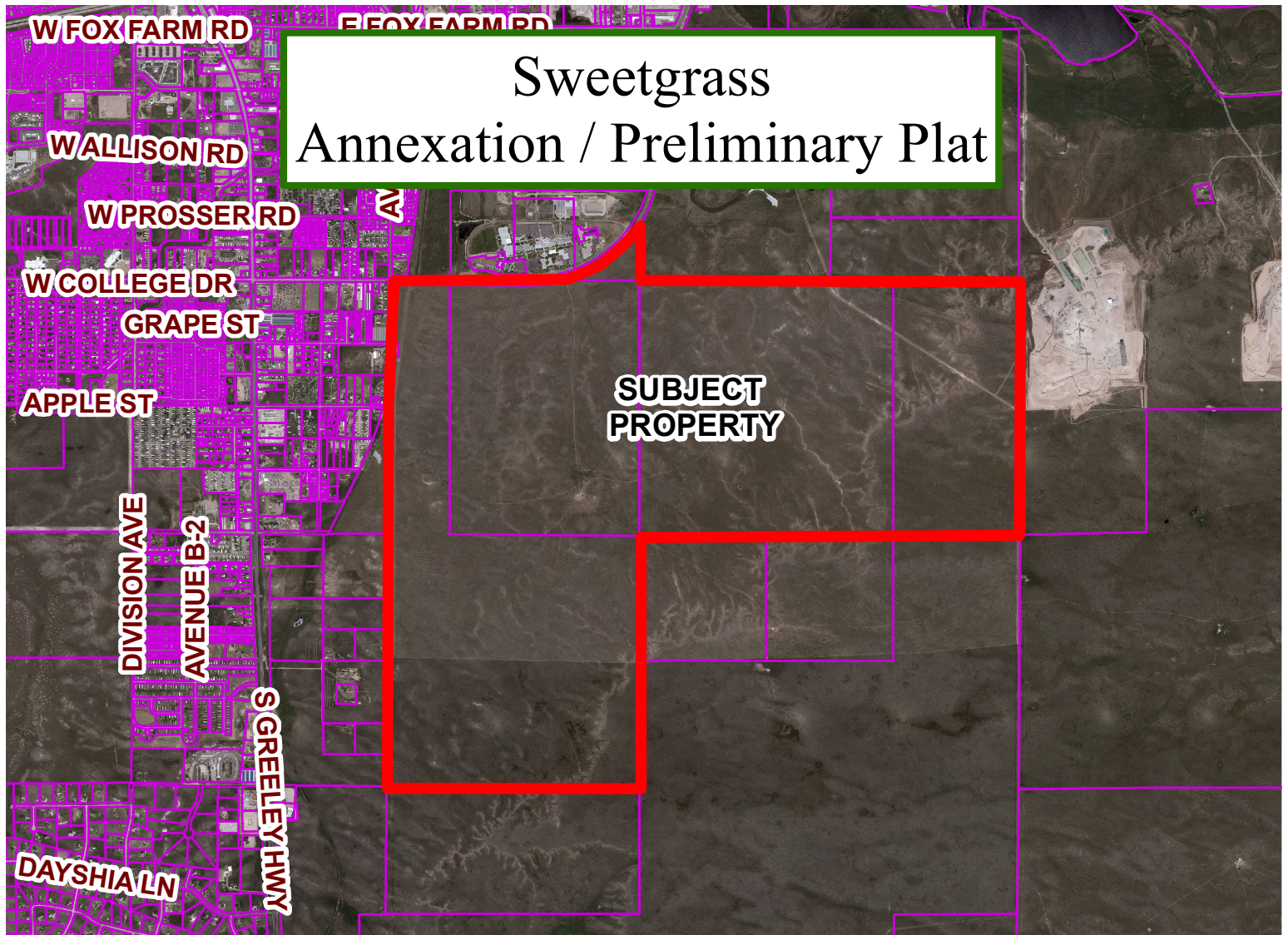
*CenturyLink (formerly Qwest): Bob Bates
CenturyLink (formerly Qwest): Kimberly Hessel
Charter (formerly Optimum): Bryan VanKirk
Laramie County Clerk: Laura Busey
Laramie County Public Works: Rob Geringer
Development: Susana Montana
High West Energy: Lloyd Sisson
Laramie Cty Conservation Dist.: Jim Cochran
Public Works: Vicki Nemecek
WyDOT: Randy Griesbach*

Other comments:

None

Encl: Annexation Map

Cc: Agent, Owner, File

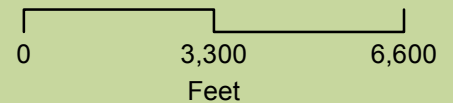


UDC-17-00542
Annexation
UDC-17-00543
Preliminary Plat

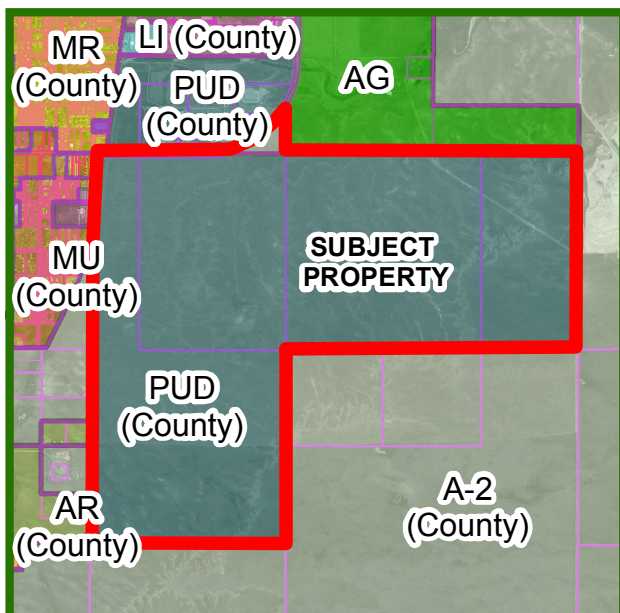
Applicants:
Sweetgrass Land Co. LLC
Arp and Hammond Co., LLC
Lummis Livestock Co., LLC

Agent: Casey Palma, Steil Surveying

Scale applies to
above map only



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

